

25VECV07369 25VECV07369

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-02

Motion: PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CW%2C09%2F02%2F2026

Source SHA-256: a3d20f517bb4d1d526a4df7873759a0419a353be8007c4193eb6ca257807bacb

Case Number: 25VECV07369 Hearing Date: September 2, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NEAL EPSTEIN;

and SUSAN EPSTEIN;

Plaintiff,

vs.

THE REGENTS OF THE UNIVERSITY OF

CALIFORNIA dba UCLA WEST VALLEY

MEDICAL CENTER; BENJAMIN JOHN

SHANNON-ALFERES, D.O.; MASIH

SADEGHI, M.D.; and DOES 1 to 100,

inclusive,

Defendant.

CASE NO: 25VECV07369

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

MOTION FOR TRIAL PREFERENCE

Dept. W

8:30 a.m.

September 2, 2026

[TENTATIVE] ORDER: The Court

TENTATIVELY DENIES Plaintiffs' Motion for Trial preference.

Background

This

is a medical malpractice and loss of consortium case. Plaintiffs Neal and Susan Epstein are a married couple. Defendants are Regents University of California, Benjamin John Shannon-Alferes, and Masih Sadeghi M.D. Plaintiffs allege that Plaintiff Neal Epstein sought emergency medical care from Defendants. Plaintiffs allege that Defendants negligently delayed Neal's treatment, resulting in cardiac arrest. As a result of this incident, Plaintiff is no longer able to walk without assistance, requires a feeding tube, and has severely impaired speech.

On December 30, 2025, Plaintiffs brought suit against Defendants, alleging medical malpractice and loss of consortium.

Now, Plaintiffs move for a trial preference.

Discussion

Plaintiffs request this Court grant a trial preference under both CCP § 36(d) and (e). (Mot. for Trial Preference, p. 5:9-18.)

i)

CCP § 36(d)

CCP § 36(d) provides that, “In its discretion, the court may also grant

a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or

condition raising

substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be

served by granting the preference.” (CCP § 36(d) [emphasis added].)

Here, Plaintiffs provide some medical documentation in support of their motion. Specifically,

Plaintiff Neal Epstein provide a copy of his doctor’s notes outlining his

recovery and treatment progress. (Mot. for Trial Preference, Ex. 1.) These

notes outline Plaintiff’s extensive injuries, mental struggles, as well as the

bevy of prescription drugs he has been prescribed. (Ibid.) However, as Defendants

point out in their separate Oppositions, these documents do not establish the

specific fact that there is doubt as to his survival beyond six months. (See

e.g., Opp. Re: Regents, p. 9:1-15.) CCP § 36(d) requires a specific showing of

a lack of short-term survival – not that the party is generally unwell. Notably,

Plaintiffs have offered no Reply in dispute of Defendants’ arguments.

Thus, without a more specific showing, the Court finds these medical

records insufficient to meet Plaintiffs’ burden under CCP § 36(d).

ii)

CCP § 36(e)

In the alternative, Plaintiffs request a trial preference under CCP §

36(e). CCP § 36(e) is a catchall provision which states that, “[n]otwithstanding

any other provision of law, the court may in its discretion grant a motion for

preference that is supported by a showing that satisfies the court that the

interests of justice will be served by granting this preference.” (CCP §

36(e).)

Here, the Court does

not find that the interests of justice will be served by granting trial

preference in this case. First and foremost, while Plaintiff Neal’s medical

issues are clearly extensive, there is no medical documentation showing that he

is unlikely to survive the next six months. (See generally, Mot. for Trial

Preference, Ex. 1.) Second, advancing the trial to four months from now would

impair the parties' ability to properly litigate this case. Discovery in this case is still nascent. There are still five outstanding depositions for physician co-defendants, as well as eight PMK depositions that have yet to occur. (Opp. Re: Regents, p. 11:13-20.) Moreover, moving this trial date would effectively eliminate any of the Defendants' ability to bring a motion for summary judgment, as there is still significant outstanding discovery, and because the notice period for such a motion is nearly as long as the trial preference scheduling window. Notably, Plaintiffs have filed no Reply to rebut Defendants' arguments.

In summary, the medical evidence presented to this Court does not show that Plaintiff Neal's health is rapidly declining. Moreover, an accelerated trial date would severely impact the discovery process in this case. Given these two facts, the Court does not find that setting the trial 120 days from now would be in the interests of justice.

For these reasons, the Court TENTATIVELY DENIES Plaintiffs' Motion for Trial preference.

That being said, while the Court has not found a showing of rapid health deterioration extreme enough to warrant a trial be scheduled 120 days from now, the Court is still cognizant of the fact that Plaintiff's Parkinson diagnosis means his mental and physical health will deteriorate over the coming year. Thus, if the parties feel it is necessary, the Court would be willing to order the deposition of Plaintiff take place within the next two months. Additionally, the Court would also be willing to entertain a shortened trial date in this case, just not one as soon as four months from now. Given the lack of a Reply, the Court intends to raise these issues with both parties at the hearing on this motion.

Conclusion

The Court TENTATIVELY DENIES Plaintiffs' Motion for Trial preference.

IT
IS SO ORDERED, Defendants TO GIVE NOTICE.

September 2, 2026

Judge of the Superior Court